

SH10

Notice of particulars of variation of rights attached to shares



☒ What this form is for
You may use this form to give notice of particulars of variation of rights attached to shares

☐ What this form is for
You cannot use this form to give notice of particulars of variation of rights attached to shares of class rights of a company without first doing this, please use

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11/07/2014

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COMPANIES HOUSE

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1 Company details

Company number 0 8 5 5 5 8 3 1

Company name in full Alpha FMC Group Holdings Limited

→ Filling in this form
Please complete in typescript or in bold black capitals.

All fields are mandatory unless specified or indicated by *

2 Date of variation of rights

Date of variation of rights 2 4 / 1 0 / 2 0 1 3

3 Details of variation of rights

Variation Please give details of the variation of rights attached to shares.

DIVIDENDS

In respect of dividends, the A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares rank pari passu as if they constituted one class of share. The holders of C Ordinary Shares have no right to participate in dividends.

REDEMPTION

None of the A1 Ordinary Shares, A2 Ordinary Shares, B Ordinary Shares or C Ordinary Shares are redeemable.

Please see continuation sheets for further details

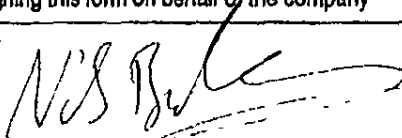
Continuation pages
Please use a continuation page if you need to enter more details

4 Signature

I am signing this form on behalf of the company

Signature

Signature

X  X

This form may be signed by
Director ¹, Secretary, Person authorised ², Administrator, Administrative receiver, Receiver, Receiver manager, Charity commission receiver and manager, CIC manager.

1 Societas Europaea
If the form is being filed on behalf of a Societas Europaea (SE), please delete 'director' and insert details of which organ of the SE the person signing has membership

2 Person authorised
Under either Section 270 or 274 of the Companies Act 2006.

SH10**Notice of particulars of variation of rights attached to shares****Presenter information**

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record

Contact name **Adam Griffiths**

Company name **Eversheds LLP**

Address **One Wood Street**

Post town **London**

County/Region

Postcode

E	C	2	V		7	W	8
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Country

DX **DX 154280 Cheapside 8**

Telephone **0845 497 9797**

**Checklist**

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register.
- ☐ You have entered the date of variation of rights in section 2
- ☐ You have provided details of the variation of rights in section 3.
- ☐ You have signed the form

**Important information**

Please note that all information on this form will appear on the public record.

**Where to send**

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ.
DX 33050 Cardiff

For companies registered in Scotland:
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R. Belfast 1

**Further information**

For further information, please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk

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3	Details of variation of rights	
Variation	Please give details of the variation of rights attached to shares	
	CAPITAL On a return of capital, a winding-up or liquidation of the Company or any other return of capital (each a "Relevant Event"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the shareholders as follows: Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the aggregate of the amount paid up (or credited as paid up) in respect of the nominal value and any share premium paid for such Shares; and Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).	

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Details of variation of rights

Variation	Please give details of the variation of rights attached to shares	
	VOTING (1) Holders of C Ordinary Shares (as a class) are entitled to cast 49% of the total number of voting rights capable of being cast by all holders of A1 Ordinary Shares, A2 Ordinary Shares (together the "A Ordinary Shares") and C Ordinary Shares. (2) Subject to (1), the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares. (3) Where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue (4) The holders of B Ordinary Shares are not entitled to cast any vote at any general meeting of the Company.	